SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 09/02/26   TIME: 1:30 P.M.   DEPT: H   CASE NO: CIV2101246

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER: CLERK: ALINA ANDRES

PLAINTIFF: ELIZABETH VARGAS

vs.

DEFENDANT: ANAHIT GHANBARZADEH ET AL.

NATURE OF PROCEEDINGS: HEARING – OTHER: DISTRIBUTION OF REMAINING SETTLEMENT PROCEEDS

RULING

This matter is on for disbursement of settlement funds following attorney Pius Joseph's lien on the settlement recovery. Mr. Joseph previously represented Plaintiff Elizabeth Vargas in this action. On September 11, 2023, Mr. Joseph filed a motion to be relieved of counsel based on irreconcilable differences with regards to representation. No further information was provided. On November 8, 2023, the court issued its order granting Mr. Joseph's motion. The following day, Mr. Joseph filed his lien on all monies recovered in this case. Ms. Vargas subsequently represented herself and obtained a settlement which was, according to her, in excess of prior offers.

An attorney who voluntarily withdraws from a case without justifiable cause is not entitled to recover a subsequent settlement without justifiable cause. The court in *Hensel v. Cohen* (1984) 155 Cal.App.3d 563 framed the inquiry as follows:

> May an attorney accept a personal injury case on a contingent fee basis, determine that it is not worth his time to pursue the matter, instruct his client to look elsewhere for legal assistance, but hedge his bet by claiming a part of the recovery if a settlement is made or a judgment obtained through the efforts of a subsequent attorney? We answer this question with a resounding 'No.'"

(*Hensel* supra at 564.)

At issue is whether there was justifiable cause for Mr. Joseph to withdraw his representation. An attorney arguing justifiable cause bears the burden of showing that: 1) counsel's withdrawal was mandatory, not permissive; 2) the overwhelming and primary motivation for counsel's withdrawal was based on the obligation to adhere to ethical imperatives under the State Bar or other statutes; 3) counsel commenced the action in good faith; 4) following counsel's withdrawal, the client obtained a recovery; and 5) counsel demonstrated that his work contributed to the client's ultimate discovery. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1015.)

Reviewing the docket in this matter, nothing suggests that the withdrawal was mandatory. A withdrawal from a case based on a "breakdown in communications" is generally not deemed to be a mandatory withdrawal. (*Rus, Milband & Smith v. Conkle & Olesten* (2003) 113 Cal.App.4th 656, 675-676).

Mr. Joseph has failed to demonstrate he is entitled to any portion of the settlement funds for attorney's fees. As to costs, Mr. Joseph provided a declaration in March 13, 2025, averring that he incurred at least $2,100 in costs. The Court will therefore, order that $2,100 in the settlement funds be disbursed to Mr. Joseph with the remainder to be disbursed to Plaintiff Elizabeth Vargas.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:
https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: https://www.marin.courts.ca.gov

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2202947

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER: CLERK: ALINA ANDRES

PLAINTIFF: SOFI LENDING CORP.

vs.

DEFENDANT: KERRY ATKINSON

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiff filed a motion for entry of judgment following a settlement agreement executed in 2024. Under the terms of the agreement, Defendant acknowledged that she owed Plaintiff $10,087.50 plus costs. The parties further stipulated to entry of judgment to be stayed pending monthly payments of at least $231, for a total of $5,548.13, but that if Defendant defaulted, the full amount would be due less any payments. Plaintiff provided a declaration indicating that only one payment of $231 was made.

Plaintiff provided notice of the motion to Defendant and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition and shall enter judgment in favor of Plaintiff and against Defendant in the amount of $9856.50 plus costs.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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